

CLIC Case 0012**Country/Court:** Federal Administrative Court**Decision number/date:** W112 1419084-1, 2017-07-27**Crime / Issue:** War Crimes, Crimes Against Humanity**Abstract prepared by:** Philipp Gartner

The applicant – a Tadjik national – applied for asylum in Austria. During the appeal proceedings, the Federal Administrative Court (“the Court”) examined the involvement of the applicant in the Tadjik National Front (“TNF”) – an armed group that was active during the Tadjik civil war. The Court considered several international reports that alleged that the TFN had purposely target civilians because of their membership of ethnic and political groups during its campaign. Consequently, the Court had to determine whether these acts amounted to grounds for an exclusion of asylum pursuant to Article 1 Section F of the Geneva Refugee Convention (i.e. war crimes, crimes against humanity or crimes against peace), and whether the applicant had been personally involved in these acts.

Citing the UNHCR recommendations, the Court held that the burden of proof to establish the personal responsibility of the applicant for an international crime rests on the state authorities unless the applicant has previously been convicted by an international criminal tribunal, or facts emerge that establish serious grounds to believe international crimes have been committed by the applicant. Since no investigation by the International Criminal Court regarding the situation in Tajikistan had taken place, the Court went on to examine the personal responsibility of the applicant for potential war crimes or crimes against humanity. Consequently, the Court held that the required standard of proof (“serious grounds to believe”) can only be met with clear and trustworthy evidence.

Accordingly, the Court classified the Tadjik civil war as a non-international armed conflict, and it found that the killings of Pamiri and Gharmi Tajiks as well as of members of opposing political groups were part of a systematic attack by the TFN. As a result, the Court held that these acts amounted to war crimes and crimes against humanity. However, the personal responsibility of the applicant still had to be determined.

The Court observed that not only direct perpetration but also aiding and abetting, ordering as well as joint criminal enterprise would lead to this result. Nevertheless, it emphasized that mere membership in a repressive group did generally not have sufficient probative value. Only if the activities and methods of the groups reached a certain threshold of brutality could an inference

to personal responsibility be made. Such an inference would have to take into account the organizational structure, the place of the applicant in it as well as its activities.

The Court concluded that the available evidence did not suffice to prove that the applicant directly perpetrated the alleged crimes. However, by referring to Article 25 of the Rome Statute it considered additional modes of liability. Accordingly, the Court underlined the voluntary nature of the applicant's membership in the TNF as well as his ability to give orders as a low-ranking commander. Additionally, the Court referred to a statement of the applicant in which he referred to members of the opposing political groups that was targeted by the TNF as "Wahhabis" or "Islamists". The Court viewed this wording as expressing a lack of remorse and a lack of acknowledgement of the crimes committed against this group.

Overall, the Court found that these facts were sufficient to establish the responsibility of the applicant for aiding and abetting war crimes and crimes against humanity during the Tadjik civil war. Accordingly, the applicant's request for asylum was rejected.